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Exercising rights over data: a journey towards First Nations data sovereignty in Canada

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ABSTRACT

This article examines the journey towards First Nations data sovereignty in Canada, with a focus on the pivotal role of the First Nations Information Governance Centre (FNIGC) and its First Nations Data Governance Strategy (FNDGS). Framed within the context of Canada's commitment to reconciliation and recognition of Indigenous rights, the FNDGS represents a significant step towards self-determination through ownership and control of data. The article discusses the historical context of colonization and its impact on data governance capacity among First Nations, highlighting the emergence of the FNDGS as a transformative force. It explores the foundational principles of the FNDGS, emphasizing the importance of data sovereignty as a tool for empowerment and self-governance. The implementation phases of the FNDGS are outlined, showcasing a multi-phased approach that prioritizes data capacity building through community-driven and nation-based principles and approaches. Additionally, the commentary discusses the lessons learned from the COVID-19 pandemic and the imperative of Indigenous-led data strategies to mitigate the risks of a future pandemic. It concludes by reflecting on the prospects of the FNDGS and its critical role alongside Canada's continued commitment to Indigenous rights in realizing true data sovereignty for First Nations.

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Colonization; data gaps; data sovereignty; first nations principles of OCAP®; First Nations Information Governance Centre (FNIGC); First Nations Data Governance Strategy (FNDGS)

First Nations mátki dáhtaid sorjjasmeahttun guvlui Kanadas

ABSTRÁKTA

Dán artihkkalis iskkat First Nations dáhta sorjjasmeahttunvuohta mátkki Kanadas, ja lassin čalmmustahttit First Nations Information Governance Centre (FNIGC) ja First Nations Data Governance Strategy (FNDGS) guovddášdoaimmaid dan olis. Vuolggasadji lea Kanada lohpádus soabadeapmái ja álgoálbmotvuoigatvuođaid dovdásteapmái, gos FNDGS:a ovddasta mearkkašahtti lávkki iešmearrideami ektui mii guoská dáhtaid oamasteapmái ja ráđđenváldái. Artihkal digaštallá historjjálaš kolonialiserenkonteavstta ja dan váikkuhusaid dáhtáidstivrenkapasitehtii First Nations gaskkas, ja deattuha FNDGS:a ilbmama nuppástusfápmun. Dat suokkarda FNDGS:a vuđolaš prinsihpaid ja deattuha movt dáhtaid sorjjasmeahttunvuohta addá dehálaš váikkuhanvejolašvuođaid ja lea reaidu iešmearrideami ektui. FNDGS:a implementerenmuttut leat čilgejuvvon, ja dat čájehit máŋggadáfot lahkoneami, mii vuoruha dáhtakapasitehta huksema servvodat- ja našuvdnavuđot prinsihpaid ja lahkoneami bokte. Lassin kommentáras digaštallojuvvo vásáhusat COVID 19-pandemiijas ja álgoálbmogiid jođihuvvon dáhtastrategiijaid vealtameahttunvuođaid boahtteáiggi pandemiijaid riskkaid njeaidimis. Loahpas vihkkedallojuvvo FNDGS:a vejolašvuođat ja dan kritihkalaš doaibma Kanada ektui gozihit Kanada joatkevaš geatnegasvuođa ollašuhttit First Nations álgoálbmotvuoigatvuođaid dáhtaid sorjjasmeahttunvuođa ektui.

Introduction

This article stems from a keynote presentation delivered by the First Nations Information Governance Centre (FNIGC) in January 2023 at the International Conference on Sámi Research Data Governance in Tromsø, Norway

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(Corston and Guéranger 2023). All content in this article is owned entirely and in perpetuity by the FNIGC. It speaks to the pivotal role of FNIGC's First Nations Data Governance Strategy (FNIGC 2020) as a landmark initiative advancing First Nations inherent rights to govern their data as a fundamental path to self-determination.

The Government of Canada has pledged its commitment "to achieving reconciliation with Indigenous Peoples through a renewed, nation-to-nation […] relationship [with First Nations], based on recognition of rights, respect, co-operation, and partnership, as the foundation for transformative change" (Canada.ca 2018). This marks a significant step toward addressing the historical denial of Indigenous inherent and Treaty rights, which has enabled disempowerment and assimilationist policies and practices in Canada.

Indigenous Peoples hold a special constitutional relationship with the Crown, recognized and affirmed in section 35 of the *Constitution Act, 1982*. Section 35 embodies a comprehensive array of rights and holds the promise that Indigenous Nations will become partners in Confederation through fair and just reconciliation with the Crown (Canada.ca 2018). The denial of Indigenous rights and the history and legacy of ongoing settler colonialism in Canada, however, has led to systemic disparities and subsequent deficiencies in knowledge and information. It is within this context that the FNDGS emerges as a driving force for systems transformation, contributing to the broader efforts of First Nations in their journey toward achieving sovereignty over their data and information.

Data sovereignty supports First Nations rights holders by empowering them to exercise control over their data, which is increasingly recognized as a crucial aspect of self-determination and self-governance. The collective ownership, control, access, and possession of First Nations information by First Nations, as outlined in the First Nations principles of OCAP® (FNIGC 2014), and the utilization of First Nations data by First Nations, constitute an exercise in self-governance, enhancing the capacity of First Nations to govern, make informed decisions, and protect and serve their citizens, akin to any other government worldwide.

The end goal of the Strategy is to establish a network of fully functional, expert-based, First Nations-led Regional Information Governance Centers (RIGCs) that will provide shared data and statistical services to all First Nations communities, their governments, and their service delivery organizations. These centers will be equipped with the common modern infrastructures needed by First Nations to leverage the power of their data – thereby exercising their rights over their data.

Considering the inherent complexities of this undertaking, FNIGC and its regional partners developed a progressive, multi-phased implementation plan for the FNDGS. This approach ensures that each region can advance at its own pace while being guided by its distinct capacities, priorities, and political contexts. The phased approach is articulated in three parts. The first phase focuses solely on developing the foundational elements that are required before proceeding with any permanent infrastructure or capacity-building investments. The second phase will be about establishing the infrastructural capacities (human and technical) based on the priorities that have been approved by leadership. It is expected that this phase will involve several sub-phases to allow for incremental implementation of data capacities over time, extending up to ten years as needed. The final phase is an "evergreen" state, with a focus on continued improvements and alignment of the regional and national centers within a national network. In the context of FNIGC's work:

> First Nations data is defined in its broadest sense: It refers to all data about First Nations peoples at the collective and/or individual level. It is First Nations intellectual property, historic and contemporary data, survey data, administrative data, and data from alternative sources, including data generated through research activities. It includes but is not limited to data about lands, resources, and the environment data 'about us' such as demographic, socio-economic and health, housing, infrastructure, and other services, as well as data 'from us.' (FNIGC 2020)

First Nations are interested in all of their data, from all sources and sectors, including data collected and controlled by other levels of government, which in the Canadian context means federal, provincial/territorial, and municipal, where applicable. They are interested in knowing where the data is located, the quality and relevance of the data, and its suitability for repatriation, as well as the necessary capacity and expertise required to leverage its power. In the first phase of implementation of the FNDGS, First Nations will engage in an exploration and prioritization process to determine what these centers should focus on first, in their earliest stages of development.

The Strategy will enable First Nations-led governance over First Nations information and the establishment of fully functional centers that could provide the full spectrum of data and statistical services –

encompassing various social determinants of health such as education, housing, water, other infrastructures, child and family matters, justice, land, environment, business, and economics, as well as any information about First Nations history, traditional knowledge, cultures, languages, and identities.

The First Nations data landscape

Comprising over 600 communities and more than 70 distinct nations, First Nations in Canada have endured and continue to face the lasting effects of colonization, which have had pervasive impacts on nearly every aspect of their lives, including on information governance. Traditional methods of managing information were displaced, resulting in significant gaps in knowledge and major misrepresentations of the realities of First Nations people's lives. In many cases, First Nations were dispossessed of their information, which has been collected and controlled by colonial governments over many decades, dictating the design and provision of local programmes and services that exist today. This persistent top-down control has resulted in a continued failure to meet the needs of First Nations communities.

The ongoing dispossession of First Nations data and governance capacities has exacerbated the negative effects of colonization, increasingly limiting their ability to address issues related to health and well-being, and undermining the preservation of First Nations identities, languages, cultures, and traditions, and impeding the socio-economic self-sufficiency of communities. For decades, First Nations have advocated for ownership and control of their data, to interrupt the status quo. The OCAP® principles of ownership, control, access, and possession emerged in the 1990s as an expression of this aspiration and, since then, have been wielded by First Nations to assert jurisdictional authority and data sovereignty rights (FNIGC 2014). These principles were (and still are) an effort to address the harms First Nations have experienced due to extractive and unethical research practices enabled by dominant, western-based authorities. Today, the OCAP® principles are the foundation upon which FNIGC and its partners built the national survey programme (FNIGC n.d.), its research programme, and, subsequently, the FNDGS.

The landscape from which the FNDGS emerged illustrates that while First Nations have made great strides with the assertion of rights over data, critical gaps remain. The challenges, such as the dearth of quality data and limited access to information due to jurisdictional, legislative, and policy barriers, are multifaceted, often intertwined, and systemic in nature. They stem from a legacy of colonialism and the imposed multi-jurisdictional reality of the Canadian federation that First Nations governments navigate daily.

Federal commitments to Indigenous-led data strategies

Canada has prioritized Indigenous issues and commitments to reconciliation in recent years, pledging to work with all Indigenous Peoples of Canada (First Nations, Inuit, and the Métis Nation) to establish a relationship based on respect, partnership, and the recognition of rights. Prime Minister Justin Trudeau is quoted as saying that "no relationship is more important to Canada than the one it has with Indigenous Peoples" (Canada.ca 2017). At the core of this commitment is the establishment of nation-to-nation or government-to-government relationships, recognizing the inherent rights of Indigenous Peoples, particularly their rights to self-determination and self-government.

As a key stepping stone, in August 2017, Justin Trudeau's Liberal government announced the dissolution of the former federal department of Indigenous and Northern Affairs Canada and replaced it with the department of Crown-Indigenous Relations and Northern Affairs Canada (CIRNAC) and the department of Indigenous Services Canada (ISC). CIRNAC's mandate is to continue "to renew the nation-to-nation, Inuit-Crown, government-to-government relationship between Canada and First Nations, Inuit and [the] Métis [Nation], respectively; to modernize Government of Canada structures to enable Indigenous Peoples to build capacity and support their vision of self-determination and lead the Government of Canada's work in the North" (Canada.ca 2023a). ISC's mandate, on the other hand, focuses on working "collaboratively with partners to improve access to high-quality services for First Nations, Inuit, and [the] Métis [Nation]. ISC's purpose is to support and empower Indigenous Peoples to independently deliver services and address the socio-economic conditions in their communities" (Canada.ca 2023b). Notably, the Department of Indigenous Services Act commits the Government of Canada "to implement the gradual transfer of departmental responsibilities to Indigenous organizations" – as directed by Indigenous Peoples (Canada.ca 2023c).

In alignment with Canada's commitments to service transfer, ISC has since adopted a "Transformational Approach to Indigenous Data" (Canada.ca 2024a), recognizing that data sovereignty and data capacity needed to effectively collect, govern, manage, and use data, are critical to ensuring that Indigenous governments and organizations can design and deliver their programmes, policies, and services. This is another key stepping stone that lays the foundation for a whole-of-government approach to support First Nations, Inuit, and the Métis Nation as they realize their respective visions for data sovereignty.

Another foundational step achieved in June 2021, was the Royal Assent of the *United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP) Act* in Canada. Subsequently, on 21 June 2023, an Action Plan (Canada.ca 2023d) was developed in consultation and cooperation with First Nations, Inuit, and the Métis Nation, to achieve the objectives of UNDRIP and to identify measures needed to ensure federal laws are consistent with it. As the Government of Canada's official statement said, "The implementation of the Action Plan will contribute to the Government of Canada's continued efforts to break down barriers, combat systemic racism and discrimination, close socio-economic gaps, and promote greater equality and prosperity for Indigenous Peoples" (Canada.ca 2024b). Through Action Plan Measure 30, Canada is called upon to:

> … Continue to support Indigenous Data Sovereignty and Indigenous-led data strategies through legislative, regulatory and policy options to help ensure that First Nations, Inuit, and [the] Métis [Nation] have the sufficient, sustainable data capacity they need to control, manage, protect, and use their data to deliver effective services to their peoples, tell their own stories, participate in federal decision-making processes on matters that impact them, and realise their respective visions for self-determination. (Canada.ca 2024b)

This is why the FNDGS is community-driven and nation-based. The bottom-up, decentralized approach is intended to shift the relationship with Canada concerning First Nations data. It is a critical success factor and the only way to create the level of credibility, trust, and legitimacy necessary for the successful implementation of such an initiative.

The commitments by Canada to respond to Measure 30, recognizing and supporting Indigenous rights over data, will be a fundamental stepping stone towards reconciliation – exemplifying that "no relationship is more important to Canada than the one it has with Indigenous Peoples" (Canada.ca 2017). This unprecedented support for Indigenous-led data strategies represents a significant structural change and a pivotal moment in the advancement of data governance and empowerment.

COVID-19 pandemic: a demonstration of the imperative for Indigenous-led data strategies

The FNDGS was submitted to the federal government in March 2020, just as the COVID-19 pandemic was taking hold in North America and around the world. As expected, it put Canada's systemic inequities on full display, revealing major gaps in the health surveillance systems. The jurisdictional divide between federal and provincial/territorial governments, coupled with uncertainties around roles and responsibilities, led to coordination issues, and restricted communications and the flow of information (Assembly of First Nations 2021). Furthermore, characterized by inadequate disaggregation and identification of First Nations in COVID-19 datasets, it led to substandard data quality, which resulted in inaccurate case counts and rates. This exacerbated the impacts, needlessly contributing to higher mortality rates among First Nations.

A position paper written under the guidance of the Assembly of First Nations (AFN) National COVID-19 Task Force highlighted that "having timely access to high-quality health data [is needed] so that First Nations are better equipped to fight against this pandemic, prepare for future health emergencies, […] and, more broadly, to support First Nations inherent rights to self-governance, self-determination and data sovereignty" (Assembly of First Nations 2021). The challenges First Nations faced during the pandemic, as discussed in the AFN paper, underscored the profound impacts of the exclusionary nature of current data governance and decision-making in Canada. They highlighted the urgent need for more comprehensive, inclusive information systems, as advocated by the FNDGS. Currently in its first phase, the Strategy is positioned to play a pivotal role in addressing many of the information gaps within Canada's health surveillance and information systems, as they relate to First Nations nationally.

In stark contrast, the notable success of the Australian response to COVID-19 in managing the effects of the pandemic (Stanley et al. 2021). demonstrated that empowering First Peoples to address the challenges in

their own way can save lives. Canada's experience points to the importance of Indigenous self-governance – not only for community well-being and self-determination – but for the critical role that accurate and reliable data plays in the effective management and prevention of public health emergencies broadly.

Exercising rights over data

The First Nations principles of OCAP® are described as "a political response to colonialism" (FNIGC 2014) and align with sentiments expressed by the Royal Commission on Aboriginal Peoples. The Commission emphasized that information gathering (data collection) and its subsequent use are inherently political because they are controlled by outside authorities, including what is collected, why it is collected, who should collect it, and who can access it (Royal Commission on Aboriginal Peoples 1997).

The OCAP® principles emerged in response to First Nations collective rejection of Canada's longstanding policies and practices in research and data collection, as well as the harms that have ensued from these approaches. First Nations data sovereignty is grounded in these principles, asserting First Nations control over data collection processes and how information is used. While they have proven to be effective, with today's evolving data landscape, there is a need to move from assertion to recognition and, ultimately, to First Nations exercising their rights, which is now a viable possibility.

With the federal Transformational Approach to Indigenous Data and, notably, Measure 30 of Canada's *UN Declaration Act Action Plan* in place, federal commitments to Indigenous data sovereignty rights are increasingly acknowledged and formalized, for the first time in history. The terminology and language First Nations have used for years to assert rights over data have now been embraced, validating decades of effort and contributions by leadership and others to advance this thinking.

The Mikisew Cree First Nation aptly describes Canada's passing of the UNDRIP Act as a "watershed moment" (Canada.ca 2023e). Moving forward, Canada must now ensure that all legislative, regulatory, policy, and programme changes align with the Declaration while working with Indigenous Peoples "to ensure that Historic Treaties are recognized, observed, and enforced, or in other words – implemented" (Canada.ca 2023f).

Figure 1 illustrates the transition from assertion to recognition, culminating in the full exercise of First Nations rights through data capacity building. For First Nations to assert data sovereignty rights effectively, First Nations must first establish the essential building blocks, namely, human and technical capacities in data.

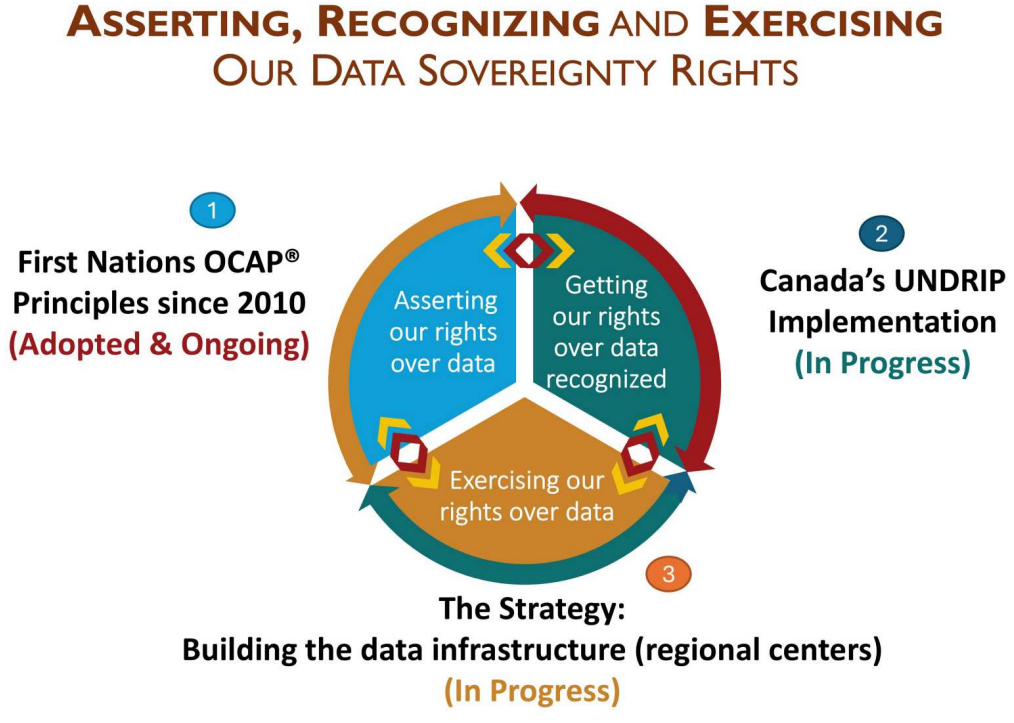


Figure 1. Exercising Data Sovereignty Rights. Illustration by First Nations Information Governance Centre (FNIGC). Reused with permission from FNIGC.

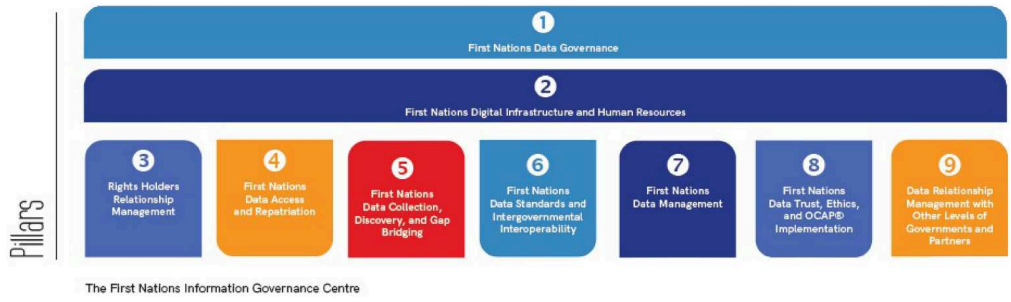


Figure 2. Pillars of Action to First Nations Data Governance Strategy. Illustration by First Nations Information Governance Centre (FNIGC). Reuse with permission from FNIGC.

The journey toward the recognition of First Nations rights over their data has been marked by relentless assertions and calls for acknowledgment. Championed by FNIGC and its regional partners, the FNDGS took root through extensive engagement with First Nations across Canada. This groundbreaking initiative paves the way for developing the modern capacities First Nations require to fully exercise their rights over their data, as illustrated. The Strategy's *pillars of action* are pivotal (Figure 2): each defines a unique data function and the capacity that should be built and why, as well as the paths that need to be taken to deliver moving forward. The first two pillars are horizontal and crosscutting by nature as they enable the work of all other pillars in a consistent and integrated manner. They are First Nations data governance and First Nations digital infrastructure and human resources. The first phase of the FNDGS implementation focuses solely on these horizontal enablers, as the two key outputs or deliverables. The vertical pillars refer to specific functions of data stewardship for which unique competencies, expertise, and tools must be built to realize direct impacts at the community, regional, or national level.

Subsequent phases of FNDGS implementation will prioritize the development of these essential capacities, including:

1. Rights holders' relationship management
2. First Nations data access and repatriation
3. First Nations data collection, discovery, and gap-bridging
4. First Nations data standards and intergovernmental interoperability
5. First Nations data management
6. First Nations data trust, ethics, and OCAP® implementation
7. Data relationship management with other levels of government and partners

This comprehensive yet ambitious, bottom-up, capacity-building initiative will take a decade or more to achieve. The network of regional centers will be empowered to leverage the potential of First Nations data and information to do what matters most, like ensuring that First Nations can count their citizens in their own ways, measure their own well-being, and take back control over their services, lands, and resources. Central to success is a shift in the accountability relationship with Canada. In this new paradigm, accountability to First Nations citizens is prioritized, ensuring the performance and quality of services align with community needs. This shift in accountability aims to empower people, returning ownership and control over data back to the community and moving away from data dependency. This is data decolonization in action.

Conclusion and reflections for the future

With the implementation of the Strategy, First Nations can, for the first time, imagine a future where data and information on all things that matter are controlled, protected, and used for the benefit of First Nations peoples, their health and well-being, and for the preservation of First Nations inherent and Treaty rights. The FNDGS stands as an attestation to the unwavering determination and resilience of First Nations. It builds upon over 25 years of leadership and advocacy for the OCAP® principles and the survey and research work of FNIGC and its partners. The network of First Nations-led data and statistical centres envisioned by the

Strategy marks the next phase in this nation rebuilding journey, fostering intergenerational cultural and identity resurgence.

The FNDGS is being built on the most solid ground possible. It is anchored in a collaborative framework that leverages the strengths of FNIGC, its regional partners, and the communities they serve, upholding holistic, community-driven, and nation-based principles of good governance. It embodies First Nations values and aspirations, cultural relevance, and acceptance. And it aligns with Canada's commitments to the United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP) Act and with ISC's service transfer mandate.

Despite these strengths, the FNDGS will face barriers. While First Nations have entrusted FNIGC and its partners' capacity to drive this change, they acknowledge that decentralized institution building is more complex and uncertain than the alternative: top-down approaches more commonly seen around the world. The challenges of a bottom-up approach are compounded by limited capacities for data utilization and the need for data literacy and will continue to be pressured by rapid advancements occurring in the global digital environment.

Further, the jurisdictional divide between federal, provincial, and territorial governments in Canada, as illustrated by COVID-19, complicates data sharing and coordination efforts. Variations in data quality, availability, and accessibility across the country also pose significant challenges. Limited access to technical expertise and infrastructure will also hinder progress, particularly for the north and regions with remote communities. Lastly, although the federal commitment for phase 1 implementation of the Strategy is significant and historic, adequate, long-term, predictable funding has yet to be secured. The FNDGS's continuity and expansion to the next generation have not yet been safeguarded.

And while the destination may be a generation away, being left behind is not an option. This journey holds great promise. It puts First Nations at the threshold of a new era in data governance, an era marked by autonomy, respect, and cultural strength. Ultimately, a fundamental factor of success is to remain community-driven and nation-based, prioritizing accountability to First Nations peoples as rights holders through First Nations-led information governance and the provision of statistical services. The unique approach ensures that the FNDGS will evolve from a policy initiative to a living framework, capable of adapting to meet the dynamic needs of First Nations communities over time. The FNDGS is a viable pathway to ensure that First Nations can transition from asserting data rights to actively exercising them – a fundamental step towards true data sovereignty and self-governance. The outcomes of the FNDGS will be significant for First Nations and their partners, including Canada – if Canada continues to stand true to its commitments.

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This commentary stands as a testament to the strength and cultural vitality of First Nations peoples in Canada. The authors are grateful to FNIGC and to First Nations, without whom this commentary would not have been possible. While it reflects the perspectives of the authors based on their practical experience in the remarkable journey of First Nations in Canada towards achieving data sovereignty, it does not speak on behalf of, nor does it necessarily represent, the official views of FNIGC or First Nations peoples.

Disclosure statement

No potential conflict of interest was reported by the author(s).

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